

Isbrandtsen Co. (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”). Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

Conclusion

Based on the analysis above, Antioch Dunes Healthcare, LLC dba Delta View Post Acute’s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

9. 9:00 AM CASE NUMBER: C25-01013
CASE NAME: DYAMON KILLENS VS. YAQUELIN REYES
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: GUARDIAN/KW HILLTOP, LLC
TENTATIVE RULING:

Defendant Guardian/KW Hilltop, LLC’s demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiffs shall have 30 days from service of notice of entry to file an amended complaint, if any.

Background

Plaintiffs Dyamon Killens and Justin Ericsson’s First Amended Complaint (FAC) is based on allegations that certain uninhabitable conditions, including water intrusion and damage, existed during their tenancy at 3400 Richmond Parkway, Apt. 2720, Richmond, California.

Plaintiffs allege they entered into a residential lease agreement for the premises with defendant Guardian/KW Hilltop, LLC on December 16, 2022. Plaintiffs further allege that the alleged uninhabitable conditions in the premises led to, among other things, their alleged wrongful eviction. On April 10, 2025, Plaintiffs filed a complaint against defendants KW, FPI Management, Inc. and Yaquelin Reyes. Following the parties’ meet and confer efforts, Plaintiffs filed the FAC on June 20, 2025, alleging (1) Negligence; (2) Wrongful Eviction; (3) Tenant Harassment in Violation of the Richmond Rent Ordinance; (4) Breach of Contract (against KW); (5) Nuisance; (6) Unfair Business Practices (against KW and defendant FPI Management, Inc.); (7) Trespass; (8) Retaliatory Eviction; and (9) Declaratory and Injunctive Relief.

Guardian/KW Hilltop, LLC (KW) now demurs to the fifth, seventh, and ninth causes of action for failure to state facts sufficient to constitute a cause of action under CCP section 430.10(e).

Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) However, a demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Fifth Cause of Action for Nuisance

CACI 2021 sets forth the essential element of a cause of action for private nuisance as follows:

1. That plaintiff [owned/leased/occupied/controlled] the property;
2. That, by acting or failing to act, defendants created a condition or permitted a condition to exist that [insert one or more of the following:] [was harmful to health;] [or] [was indecent or offensive to the senses;] [or] [was an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property;] [or] [unlawfully obstructed the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway;] [or] [was [a/an] [fire hazard/specify other potentially dangerous condition] to plaintiff's property;] property;]
3. That defendant's conduct in acting or failing to act was [intentional and unreasonable/unintentional, but negligent or reckless]/[the condition that defendant created or permitted to exist was the result of an abnormally dangerous activity]];
4. That this condition substantially interfered with plaintiff's use or enjoyment of her land;
5. That an ordinary person would reasonably be annoyed or disturbed by defendant's conduct;
- [6. That plaintiff did not consent to defendant's conduct;]
7. That plaintiff was harmed;
8. That defendant's conduct was a substantial factor in causing plaintiff's harm; and
9. That the seriousness of the harm outweighs the public benefit of defendant's conduct.

(1 CACI 2021 [2025 ed].)

KW argues that the FAC fails to plead facts to support the essential elements of a private nuisance claim because the FAC does not allege that KW's conduct was intentional and unreasonable or unintentional but negligent or reckless and does not allege that the offending conditions resulted

from an abnormally dangerous activity. KW also argues the FAC fails to state a cause of action because Plaintiffs do not allege that they suffered substantial harm from KW's conduct that outweighs the social utility of KW's conduct.

The court disagrees that the FAC fails to state sufficient facts to support a nuisance cause of action. Plaintiffs allege they were tenants of the premises owned by KW. (FAC at ¶2.) Plaintiffs allege that KW "created conditions that interfered with Plaintiffs' use and enjoyment of their home by failing to correct habitability defects, by refusing to address longstanding water intrusions, by refusing to inspect and remediate portions professionally of the Plaintiffs' home, and by other acts and failures to act that interfered with Plaintiffs' use and enjoyment of their apartment." (FAC ¶ 65.) Plaintiffs allege that these conditions substantially interfered with Plaintiffs' use and enjoyment of their home, and that an ordinary person would reasonably be annoyed or disturbed by the conditions. (FAC ¶¶ 67, 70, 74(c).) Plaintiffs also allege facts from which a jury could conclude that the defendants' actions were "intentional and unreasonable/unintentional, but negligent or reckless." (FAC ¶¶ 11–19, *passim*.) Plaintiffs additionally allege that they did not consent to Defendants' acts or omissions, that Defendants' conduct conferred no public benefit, and that Plaintiffs suffered harm as a result. (FAC ¶¶ 64, 66, 69, 70.)

Accordingly, the demurrer to the fifth cause of action for private nuisance is overruled.

Seventh Cause of Action for Trespass

KW argues the seventh cause of action for trespass fails to state sufficient facts to constitute a cause of action against KW.

Plaintiffs respond that the FAC contains allegations that "Defendants repeatedly entered the Subject Unit without proper notice and without their consent during the period in which Defendants performed piecemeal or abandoned repair attempts. Contractors and management staff arrived unannounced, inspected areas, opened walls, and left exposed construction conditions while Plaintiffs were living inside the home," and that "[t]hese allegations alone satisfy the first form of actionable trespass—unauthorized physical entry." (Opp. 7:27–8:4.)

However, the opposition fails to identify where in the FAC these allegations appear, and the Court is unable to locate them. Rather, the court's review of the FAC reflects only that Defendants entered the unit to make repairs, without alleging that any such entry was unauthorized. Accordingly, Plaintiffs fail to state a viable cause of action for trespass based on the landlord's entry into the unit.

Plaintiff then cites to *Koll-Irvine Ctr. Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041–1042 for the proposition that water intrusion into a dwelling can constitute trespass where, as here, it allegedly results from a defendant's failure to make necessary repairs. (Opp. p. 7.) However, *Koll-Irvine* addressed whether allegations of a feared future catastrophic accident constituted an interference with the use and enjoyment of land sufficient to support a nuisance cause of action at the demurrer stage.

Nevertheless, Plaintiffs' water-intrusion theory may be viable at the pleading stage. "Trespass to property is the unlawful interference with its possession." (*Eton v. Anheuser-Busch Beverage Group*,

Inc. (1996) 50 Cal.App.4th 1301, 1306, citing 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 604, p. 704.) A trespass may be accomplished by “the casting of substances or objects upon the plaintiff’s property from without its boundaries.” (*Id.*, citing 75 Am.Jur.2d, Trespass, § 11, p. 15, fn. omitted.)

Here, Plaintiffs allege that their unit suffered water damage due to flooding caused by Defendants’ failure to maintain the premises and refusal to repair the damage, resulting in a substantial interference with Plaintiffs’ use of the premises. The demurrer does not challenge this theory, as it is focused on the sufficiency of Plaintiffs’ allegations concerning the landlord’s entry into the property to make repairs. To the extent the trespass cause of action is duplicative of the nuisance cause of action, Plaintiffs are allowed to plead in the alternative, and KW is not prejudiced by the assertion of overlapping theories at this stage of the proceedings.

Accordingly, KW’s demurrer to the seventh cause of action for trespass is overruled.

Ninth Cause of Action for Declaratory and Injunctive Relief

KW argues that the ninth cause of action for declaratory and injunctive relief fails to state a cause of action because Plaintiffs do not plead an actual and present controversy against KW, given that KW is not an insurer. The court agrees that Plaintiffs fail to state a viable cause of action against KW for declaratory relief.

CCP section 1060 provides that “[a]ny person interested under a ... contract, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the ... contract.” (*Id.*) In a related statute, CCP section 1061, provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” (*Id.*)

Here, the FAC fails to state the cause of action for declaratory and injunctive relief against KW as opposed to KW’s insurer should plaintiff prevail in this action and pursue the insurer for bad faith. The declaratory and injunctive relief cause of action states, in part, as follows:

91. An actual controversy now exists between the Plaintiffs and Defendants in that the Plaintiffs contend they served the Defendants’ insurance companies with a section 999 demand under the California Code of Civil Procedure through their counsel, that the Defendants’ insurance carriers refused to respond within the time permitted to this demand, that the carrier never sought and that the carrier’s bad-faith refusal to respond opens the Defendants’ insurance policies to covered and uncovered claims.

92. Defendants, by and through their insurance companies, deny this.

93. By virtue of the above controversy, the Plaintiffs seek a declaration as to the above and to enjoin Defendants and their insurance companies from contesting that the underlying policies have been opened to uncovered damages as a result of the carrier’s failure to abide by the

Code of Civil Procedure section 999.

Plaintiffs also allege that:

23. On or about August 5, 2024, the Plaintiffs notified the Defendants regarding their claims. Defendants tendered the claim to their carrier. The carrier asked for more than four months of extensions and each time refused to respond by their self-imposed extended deadlines.

24. On January 13, 2025, the Plaintiffs issued a section 999 demand under the California Code of Civil Procedure to the Defendants' carrier. The carrier failed to respond by the deadline. The carrier failed to ask for an extension. The carrier called weeks after the deadline expired and was unaware of the requirements of the section 999 demand despite the clearly marked demand issued by the Plaintiffs.

25. Plaintiffs contend that the Defendants' carrier's failure to respond to the Section 999 demand opens the policy to all damages covered and uncovered, including attorney fees and costs."

By way of background, CCP sections 999 to 999.5 (effective January 1, 2023) are statutes concerning "time-limited demands" which apply to a written offer to settle (1) that is served before filing of a complaint or a demand for arbitration, (2) requires acceptance within a specified time period, and (3) is an offer to settle a cause of action or claim for "personal injury, property damage, bodily injury, or wrongful death" within the limit of the tortfeasor's "automobile, motor vehicle, homeowner or commercial premises liability insurance policies." Under CCP § 999.3.(c), if the insurer does not accept a "time-limited demand," the insurer must "notify the claimant, in writing, of its decision and the basis for its decision" prior to the expiration of the demand, including any extension agreed to by the parties. This written notification of non-acceptance "shall be relevant in any lawsuit alleging extracontractual damages" against the insurer. (*Ibid.*)

Thus, Plaintiffs allege they served Defendants' insurance carriers with a 999 demand and the insurance carriers allegedly failed to respond with the time allowed. (See FAC, ¶¶ 23-24; and ¶¶ 91-93.) Plaintiffs claim these failures "opened the policy to all damages covered and uncovered, including attorney fees and costs" in this action, and they seek a legal declaration that KW's insurer/s will be obligated to pay. (FAC, ¶ 25.)

Plaintiffs' claim for declaratory relief against KW fails. As is evident, there is no contractual relationship between Plaintiffs and KW regarding insurance. Further, there is no actual controversy relating to the legal rights and duties of Plaintiffs and KW, despite the allegation at paragraph 92, because Plaintiffs do not seek a declaration that KW itself will be required to pay "all damages covered and uncovered, including attorney fees and costs," but instead that KW's insurer/s will be obligated to indemnify KW for such amounts.

In its reply brief, KW asserts that while "it is possible" that Plaintiffs can cure the defects in their nuisance and trespass causes of action, their declaratory and injunctive relief cause of action fails because there is no legal authority to support a claim arising under CCP section 999 et seq. against an

insured.

Here, the court agrees that Plaintiffs' position is legally unsupported. Plaintiffs cite no law permitting a trial court, in an action against an insured defendant, to adjudicate an insurer's alleged obligation to pay damages in excess of policy limits based on an alleged violation of CCP section 999, and Plaintiffs offer no explanation as to why existing law should be extended to authorize such relief.

Plaintiffs argued in their opposition "[t]he Court *must* decide this issue at the damages phase of trial, outside the jury's purview, and the Plaintiffs have direct standing to determine their theories of recovery for damages," citing to CCP section 2017.210 and *Haynes v. Farmers Ins. Exchange* (2004) 32 Cal.4th 1198. (See Opp. 3:17-21 [emphasis original].) Neither authority supports Plaintiffs' position. CCP section 2017.210 permits discovery of the existence and contents of liability insurance that may be available to satisfy a judgment; it does not authorize a court to adjudicate insurance coverage or bad faith liability in an action against the insured. *Haynes* involved a declaratory relief action brought directly against a liability insurer, and the issue of standing was neither raised nor analyzed.

Plaintiffs fail to establish an actual and present controversy between themselves and KW sufficient to support declaratory relief under CCP section 1060. Plaintiffs also do not demonstrate that a declaration would be necessary or proper under the circumstances. Therefore, CCP section 1061 provides an independent basis for declining declaratory relief.

Although it is not clear what additional facts Plaintiffs could allege to cure the defect, the court grants leave to amend to afford Plaintiffs an opportunity to attempt to state a cognizable cause of action for declaratory relief against KW. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Liberality in permitting amendment is the rule, if a fair opportunity to correct has not been given."].) Absent new or different factual allegations, the court is skeptical that Plaintiffs can do so.

Disposition

Defendant Guardian/KW Hilltop, LLC's demurrer to the First Amended Complaint is overruled as to the fifth and seventh causes of action and sustained with leave to amend as to the ninth cause of action. Defendant shall prepare the order and serve notice of entry. Plaintiff shall have 30 days from service of notice of entry to file an amended complaint.

10. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

The law requires proof of service of a motion to give notice of the time and date of the hearing as well as the department, if the department is known. (See CCP 1010; California Rules of Court, rule 3.1203.) Here, plaintiff never gave notice of the date, time and time of the motion, nor of the department where the motion would be heard. As such the motion is continued to January 16, 2026, at 9 a.m. so that Plaintiff can give proper notice.